HILCHOT HANUKKAH – SHULHAN ARUKH

When to Light, How Late, and Which Oils: Timing & Fuel

Hilchot Hanukkah I Siman 672–673

Dayan Daniel Kada · Thursday Night Halacha · Shiur 4 of 7 Shulḥan Arukh, Oraḥ Ḥayim 672 and 673

Context and Review

It was **Shabbat Mevarchim Kislev**, with Rosh Ḥodesh on the Sunday, so Hanukah was less than a month away. The aim was to cover **Siman 672 and 673** in one shiur, in order to finish all of Hilchot Hanukah before the festival.

Last week: the history of the synagogue menorah, its origins and reasons, how one can make a berachah on a minhag, how long it must burn in shul, who counts toward the ten, the extension to public places, the house with two entrances, and the start of the timing laws.

Part One: The Earliest Time (672:1), Summarised

אין מדליקין נר חנוכה קודם שתשקע החמה, אלא עם סוף שקיעתה, לא מאחרים ולא מקדימים.

- The Gemara: **משתשקע החמה**. The Rambam: **עם שקיעתה**. The Shulḥan Arukh quotes the Rambam but understands "with sunset" as **"with the end of sunset"**: **nightfall**, when the sun has finished going down.
- **Rabbeinu Tam and others:** nightfall. **The Rashbam**, perhaps **the Rosh**, and a possible reading of **the Rambam** (as the **Bi'ur Halacha** argues): **the beginning of sunset**, lighting right after the sun sets.
- **The Vilna Gaon** follows the sunset view, which is why some Ashkenazim light at sunset. **The Sephardi custom** has always followed the Shulḥan Arukh: **at nightfall**.
- As last week: nightfall does **not** mean waiting for the calendar's Shabbat-ends time. You have **a good 10, 15, even 20 minutes** before that time to light.

Arvit or the Menorah First?

If you...	Then
Follow the **Gra** and light at sunset	Pray Minḥah before sunset, light at sunset, go back to shul later for Arvit
Pray **Minḥah before sunset and Arvit straight after**, as many Sephardim do	Pray Arvit, go home, and it's time to light
Are particular all year to pray **Arvit at nightfall** (the Sephardim "were never really particular about this")	**Both mitzvot fall due at the same moment.** Which comes first?

The Rabbi asked the class for arguments.

Mark: תדיר ושאינו תדיר, תדיר קודם: the more frequent mitzvah comes first, so **Arvit**.

A second argument for Arvit: Arvit contains **Shema**, a **Torah** mitzvah. However beautiful and beloved Hanukah is, it is rabbinic. Do the d'oraita first.

Indeed, **at any later time in the evening** (coming in from work at 7 or 8), you should pray Arvit first, for both reasons.

But the Bi'ur Halacha proves, and this is how we rule, that at nightfall you light the menorah first. Why? - It is not clear what the Rambam holds: sunset or nightfall. We follow the Shulḥan Arukh's nightfall reading. - If you wait for Arvit at nightfall and then come home, 10, 15 or 20 minutes later, you are **definitely outside the half hour after sunset**, and according to the Gra, the Rashba and the other Rishonim you have missed the proper time. - If you light **just as it becomes nightfall**, you are **still within half an hour of sunset**, even in the UK where sunsets are long. **You satisfy every opinion.** - **The principles of tadir and d'oraita first apply when you can do both properly.** Here, delaying risks **losing the mitzvah** according to some Rishonim, so the menorah goes first.

Ruling: at nightfall, if you haven't yet prayed Arvit, **light first, then pray**. Later in the evening, **pray Arvit first**.

Lighting From Pelag HaMinḥah

ויש מי שאומר שמפלג המנחה ולמעלה יכול להדליק, ובלבד שיתן בה שמן שתדלק עד שתכלה רגל מן השוק.

A principle for learning the Shulḥan Arukh: "יש מי שאומר"

When the Shulḥan Arukh writes **"there is one who says"** without dissent, it **does not mean he disagrees**. Many poskim, the **Ḥida** very clearly among them, explain: he uses this phrase for a ruling found in **one or two books** with **no source in the Gemara**, written by a Rishon whom nobody contested. He holds of it, but presents it as that author's view.

Here the source is a late Rishon of the **Aboab** family, a near-contemporary of the Shulḥan Arukh, and **this is what we follow**.

The logic: every Friday of Hanukah we **must** light from pelag haminḥah, since at sunset it is already Shabbat. So pelag haminḥah is already, to some extent, the start of the next day, and **in extenuating circumstances** you may light from then, **with a berachah, on any night of Hanukah**, provided there is **enough oil to last until half an hour after nightfall**. This is established practice.

What counts as extenuating? Each person has to judge, but for example: - **An evening flight:** you leave for the airport just before sunset and won't land until the next morning. Light at pelag haminḥah. - Working the entire evening and not getting home until very late. (Whether pelag haminḥah or a very late lighting is better is discussed below.)

Part Two: The Latest Time (672:2)

שכח או הזיד ולא הדליק עם שקיעת החמה, מדליק והולך עד שתכלה רגל מן השוק, שהוא כמו חצי שעה... ואם עבר זה הזמן ולא הדליק, מדליק והולך כל הלילה. ואם עבר כל הלילה ולא הדליק, אין לו תשלומין.

Three levels

Level	When	Status
1	**At the proper time**: nightfall (Sephardim) or sunset (some Ashkenazim)	**Ideal**
2	while people are still walking home, **about half an hour** :עד שתכלה רגל מן השוק	**Still lechatḥilah**
3	**The rest of the night, until dawn**	**Bedi'eved**, but valid

Why half an hour? In Talmudic times, when it got dark you stopped work and walked home, which took twenty minutes or half an hour. That is when the streets were busy.

If a whole night is missed, there is no make-up (אין לו תשלומין). Don't light an extra light the next night, and don't try to "light for last night." Carry on with the same count as everyone else. "It's gone. No more opportunity."

The Rema: "nowadays we light indoors"

> Some say that since we light indoors out of fear, the timing no **הגה: ויש אומרים דבזמן הזה... אין לחוש...** longer matters.

This was very widespread in the Rishonim, which underlines how common it was not to light outdoors: - **Tosafot** write that the time limit no longer applies, because we light indoors. - **The Me'iri** writes that his beit midrash did **not interrupt learning**: they learned all day and lit late at night, since it was indoors anyway.

"Nowadays, I think everywhere across the world... kollelim, yeshivot all wrap up early, four o'clock, whatever time it is," so people can get home to light at the right time.

But today we usually light by a window, so there **is** pirsumei nisa, and the Shulḥan Arukh's original law returns: be particular to light within the half-hour window. **Even the Rema himself** writes that even indoors it is good to keep to the correct time.

Lighting very late: must someone be awake?

The Magen Avraham (in the Mishnah Berurah): "you may light all night" with a berachah **only if members of the household are awake**. If everyone is asleep, light **without** a berachah. The Mishnah Berurah even suggests that if you come home very late before dawn and find everyone asleep, **wake some of the family** so you can say the berachah.

The obvious question, which the class raised: didn't we learn that **pirsumei nisa applies even to yourself**? Someone living alone lights with a berachah, as does someone lighting on a table in time of danger, or in a place with no other Jews at all. Robert added that we light indoors where no one sees.

- The Mishnah Berurah is **sceptical**: in the Sha'ar HaTziyun he brings those who disagree and says one may follow either opinion.
- **The Ben Ish Ḥai does follow the Magen Avraham** and requires someone to be present.
- **Ḥacham Ovadia** and many others (the **Knesset HaGedolah**, R. Ḥayim Benveniste; the **Petaḥ HaDvir**) say **this is not needed**. Pirsumei nisa is a mitzvah even individually.

Our ruling: you may light **all night, with a berachah, even alone**. If you come home at one in the morning, single, to an empty house, you still light with a berachah. It is always nicer to gather the family, but it is not required.

The Brisker Rav's idea: has "רגל מן השוק" moved?

An idea in the name of **the Brisker Rav**: the Sages set "until people stop walking in the market" at half an hour because that was the reality then. **Today** residential streets are busy at 5, 6 or 7 pm; on a main road perhaps 9 or 10 pm. So **the oil should last as long as people are still walking around**.

Everyone rejected this: the Sages fixed **half an hour**, and once they set a measure, it stays.

"No one really takes this to halacha. It's a very interesting idea." And yet...

...in a different respect the poskim do rely on it, somewhat contradictorily: many write that because reality has changed and the streets are still busy, **level 2 (lechatḥilah) now extends** as long as people are still out. Coming home at 5 or 6 pm and lighting by the window is **still lechatḥilah**, not bedi'eved. Coming home at 10 pm is certainly bedi'eved. "On one hand we say the time has extended; on the other, we say you don't need oil for that long. Which is why I'm not convinced."

Remember: if you light **indoors on the table**, where no one sees, this whole discussion hardly arises. It concerns people lighting **at windows and front doors**, where there is publicity.

Questions From the Class

Should we wait for the family to come home?

Robert: today, in effect, we light for the **household**. If I'm home at 4 but the five or six children only get home at 6, isn't it better to wait, for more pirsumei nisa? A participant countered: the people passing in the street outnumber your household, however big. "But are they all Jews?" came the reply. **The Rabbi:** "I can hear that argument," with a big family, and if no one is going to be home earlier.

R. Shlomo Zalman Auerbach's question: should the wife wait?

A wife is **equally obligated** in Hanukah. Usually the husband says the berachot, by the general rule that when both are present and able, the man performs it. (The **Even HaEzer** is sharp about a capable man relying on his wife, as with Hallel.) But:

The wife and children are home at 4. The husband won't be back until 10. Should they wait?

Consider the reverse: if the **wife** is out, the husband **doesn't wait**. Strictly, he lights at the right time ("it may not be great for the shalom bayit at home"). So:

If he'll be home...	Then
While people are still out and about	**They wait for him** and light together as a family
Later (nine o'clock; on quiet streets even eight)	**The wife lights at the correct time**

Likewise **adult children who are part of the household** (dependent, eating at home and supported by their parents) may light for it. **A practical case:** a couple flying to Rome for an anniversary ask their **teenage children**, boy or girl, to light at home in London. "Absolutely fine." Their household is in London, and it is being lit there.

"I hope what I've done is given you the halachic principles. Each person has to weigh up the circumstances."

How Long Must It Burn? And a Safety Warning

There is no need for more oil than the time requires. If you put in more, **you may extinguish it** after the time has passed.

"Unfortunately the reality is we've heard of many Hanukah tragedies." A few years ago there was a serious Hanukah fire in the USA. People leave the menorah burning, go out to Hanukah parties, and come home to a fire. **There is no mitzvah in leaving the menorah on after half an hour.** If you are going out, stay with it for a while, then **extinguish it**.

Some might argue that, on the "extended time" view, there would be value in keeping it burning, but "we don't really take this on." It's lovely to watch the lights burn for hours, but **the mitzvah is done after half an hour.**

The Mishnah Berurah: extra oil to make it burn longer is **no added mitzvah**.

Hiddur is at the moment of the mitzvah: - **Tall wax candles** are a beautification (with wax, a handsome long candle is hiddur). - **A huge amount of oil** so it lasts longer is **not** hiddur mitzvah. Hiddur means beautifying the mitzvah **at the time of the mitzvah**, not making it last longer than required.

After the time has passed, you may also **benefit from the light**, which is rarely relevant today with electricity.

Candles that won't last half an hour

The **Bi'ur Halacha:** if you have so little oil, or such small candles, that they **cannot last half an hour**, they do not fulfil the mitzvah.

When the Rabbi used to light in **care homes**, the small coloured "Hanukah candles," essentially birthday candles, were gone in twenty minutes or less. **If you doubt that your candles will last half an hour, light without a berachah.**

Don't sit down to a meal

Once the time to light has arrived, **don't sit down to a proper meal** (washing for bread) before lighting; a small snack is fine. **Ḥazon Ovadia:** if the family is waiting for the one who will light, say at 6, they need not go hungry. They have no mitzvah yet; they are waiting for someone else to perform it.

Part Three: Fuels (673)

כל השמנים והפתילות כשרים לנר חנוכה, ואף על פי שאין השמנים נמשכים אחר הפתילה, ואין האור נתלה יפה באותן פתילות. *All oils and all wicks are valid for the Hanukah light, even if the oil doesn't draw well up the wick and the flame doesn't hold well on it.*

Why the contrast with Shabbat?

Every Friday night we say **במה מדליקין**, with its many rules about which oils and wicks may be used for **Shabbat** candles: none with a bad smell (you'll leave the room), and none that flicker or burn poorly. That is because the Shabbat light is for **oneg Shabbat**: it must create an atmosphere in which you want to stay.

Hanukah is about publicity. As long as there is a wick and a flame, that is what we need.

This is why we don't say במה מדליקין on Shabbat Ḥanukah. On Friday night of Hanukah, its restrictions might be misunderstood as applying to the menorah, so it is skipped "to make it clear." The custom of skipping it when Friday night is Yom Tov **began with Hanukah** and spread from there.

The best fuel

Fuel	Status
Olive oil (שמן זית)	**Best.** Burns brightest and is a special mitzvah, as in the Beit HaMikdash
Other oils with a good flame	Good
Wax candles (the Rema: the custom in Europe)	Acceptable, since wax burns brightly. The Rema mentions it because people **couldn't afford** that much oil every night

Everyone agrees olive oil is better. For bulk lighting (care homes, hotels) wax is simpler, "but really at home we should all be making an effort to be lighting with olive oil."

Wax versus a weaker oil?

If the oil available burns less brightly than a wax candle, which is better? - **The Maharal** (cited in the Mishnah Berurah): **oil is always better**. We are publicising **a miracle of oil**, and the Temple used oil. - **Others:** the brighter flame is better publicity.

Bottom line: use **olive oil if you can afford it**, then other oils, then wax.

Fuels forbidden for Shabbat are fine for Hanukah, even on Friday

Even on Friday afternoon, fuels forbidden for Shabbat candles may be used for the menorah, since you may not use the menorah's light anyway, and you will light separate candles for oneg Shabbat.

A participant: surely the bad-smelling ones are still a problem, since the reason for the Shabbat rule is that you'll leave the room? **The Rabbi:** no. A bad-smelling Shabbat candle fails to fulfil **the Shabbat-candle mitzvah**. If you have proper Shabbat candles **and** a smelly menorah, both mitzvot are fulfilled; the smell is "an external issue."

No Benefit From the Hanukah Lights

Why is it forbidden? 1. **Pirsumei nisa:** to show clearly that the lights are **only** for the miracle. 2. In the **Beit HaMikdash**, the Menorah was not used for other purposes either.

How strict? Not even **counting money**; not even reading a **Torah book**. (Some permit study, but in practice the law is almost irrelevant today.)

The shamash, again

Because of this law, the **shamash** became customary, already about **700 years ago**: if you need light, you are using the shamash's.

	Ashkenazim	Sephardim
The shamash's role	Lit **first** and used **to light** the others	Primarily **the extra light**, lit **at the end**
In common	Placed **higher** or apart, so no one thinks it is one of the Hanukah lights and you can see which night it is	

"Menorah" or "Ḥanukiyah"?

What we light is **not** the Menorah of the Beit HaMikdash. That had **seven** lamps: a central stem with three branches each side. Ours has **nine**: eight plus the shamash. We call it a "menorah" in a borrowed sense, which is probably why the word **ḥanukiyah** arose.

Why it hardly matters today: almost every menorah has a shamash, and we have electricity. Only if your house were pitch dark, with no shamash and no other light, would these laws apply in practice.

Mixed Oil (the Rema)

Background: setting oil aside for Hanukah does not sanctify it: **הזמנה לאו מילתא היא**, designation alone means nothing. You may change your mind and cook with it, just as material set aside for a tallit bag may be used to mend a coat. **Leftover oil may of course be used the following night.**

The specific case: you lit, the flame **went out before half an hour**, so the remaining oil was dedicated to Hanukah and may be used only for Hanukah lights, and then **it got mixed with ordinary oil**.

- **The Rema:** it is **not nullified, even one in a thousand**, because it is a **דבר שבמנין**, a "counted" item (the lights are numbered by the nights).
- **The Aḥaronim** (in the Mishnah Berurah) disagree: normal nullification applies, **one in two**. In this unusual scenario, if there is twice as much ordinary oil, it may be used.

הדלקה עושה מצוה: If It Goes Out

הדלקה עושה מצוה. לפיכך אם כבתה קודם שעבר זמנה, אינו זקוק לה. *The lighting performs the mitzvah. So if it went out before its time had passed, he need not relight it.*

- **An accident:** you lit properly, and five minutes later a child knocked it over. **You're done.** You lit, you publicised it for five minutes.
- **Even on Friday afternoon:** if it goes out a minute after lighting, you need not relight.
- **You may relight to be stringent**, and the Mishnah Berurah cites Aḥaronim who say it is good, especially on Friday. But **no berachah**.

The condition: at the moment of lighting, **it must have been able to last half an hour**. - **A miscalculation** (too little oil) is your mistake: you have not fulfilled the mitzvah. - **Predictable wind**, lighting somewhere it would **probably** blow out, doesn't help even if it lasted 25 minutes: you would need to light again, possibly even with a berachah. In practice, **no berachah**, because it is hard to be certain whether it could have lasted. In theory, if you knew for certain that it couldn't, you would relight with a berachah. - **An unexpected freak gust:** you have fulfilled the mitzvah.

The same principle, from Siman 671: **don't light at the bedside and then move it to the window.** At the moment of lighting, it must be in the proper place. Lighting in a valid place and then moving it (from one windowsill to another) is fine.

Reusing wicks (673:4)

You **need not use new wicks every night**. Reusing them is **not** disrespectful to the mitzvah. Replace them when they can no longer be used.

Summary

1. **The time to light:** Sephardim at **nightfall**, the end of sunset (the Shulḥan Arukh); followers of the Gra at sunset. Light early in that window.
2. **Arvit vs. menorah:** at nightfall **light first**, to stay within half an hour of sunset and satisfy all opinions (Bi'ur Halacha). Later in the evening, **pray Arvit first** (tadir; Shema is d'oraita).
3. **Pelag haminḥah:** in genuine need (a flight, working late), light from pelag with a berachah and enough oil to last until half an hour after nightfall. "יש מי שאומר" means the Shulḥan Arukh **accepts** the view.
4. **Three levels:** the proper time, then the half-hour window (lechatḥilah, possibly extended while streets are busy), then **all night until dawn** (bedi'eved). **No make-up** for a missed night.
5. **Alone or late:** light **with a berachah** even if everyone is asleep or you live alone (Ḥacham Ovadia), against the Magen Avraham and the Ben Ish Ḥai.
6. **Waiting for a spouse** (R. Shlomo Zalman Auerbach): wait if they will be home while people are still out; otherwise the one at home lights. Household members, including adult dependent children, can light for the household.
7. **Half an hour is enough.** You may extinguish afterwards: **don't leave a menorah burning when you go out.** Candles that can't last half an hour don't count.
8. **Fuel:** all oils and wicks are valid, unlike Shabbat. Hence **במה מדליקין no on Shabbat Ḥanukah**. **Olive oil is best**, then other oils, then wax.
9. **No benefit** from the lights, hence the **shamash** (lit last by Sephardim, first by Ashkenazim). Our "menorah" is really a **ḥanukiyah**.

    if it goes out by accident, you're done. If it was never able to last, relight. **Wicks may :הדלקה עושה מצוה be reused.**

Coming Up

No shiur the following Thursday (the Rabbi was travelling). Classes resumed on **Thursday 12 December**, possibly with extra sessions to finish before Hanukah, starting with **Siman 674**: lighting one Hanukah light from another.

Watch or listen to this shiur: youtu.be/Z1f-Rjunobw · More shiurim: rabbikada.com